

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Tilafaiga Faamuli Taape, Jr.

24PR000214

PETITION FOR ORDER DIRECTING TRANSFER OF ASSETS TO ESTATE AND FOR DAMAGES: (1) VIOLATION OF UNIFORM VOIDABLE TRANSACTIONS ACT FOR ACTUAL FRAUDULENT TRANSFER; (2) FRAUDULENT TRANSFER; (3) IMPOSITION OF CONSTRUCTIVE TRUST

APPEARANCE REQUIRED.

FAMILY LAW CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Jesse Powell et al v. Christina Yee et al

25FL000217

PETITIONER’S MOTION TO SEAL PORTIONS OF PETITIONER’S OPPOSITION TO RESPONDENT’S MOTION TO DISQUALITY QUINN EMANUEL URQUHART & SULLIVAN, LLP [Filed 10/30/2025]

TENTATIVE RULING: The motion is DENIED AS MOOT.

This Motion was set for hearing on short notice, pursuant to Petitioner’s 6/3/26 *Ex Parte* Application. While the Declaration of Melinda H. Lewis in Support of Petitioner’s *Ex Parte* Application (“Lewis Decl.”) contends that the present Motion was unopposed before it was taken off calendar on 2/2/26, if that contention is inconsistent with Respondent’s understanding, and the Motion is, in fact, opposed and Respondent disagrees with this Tentative Ruling, her counsel should request oral argument pursuant to Local Rule 2.9 and appear at the hearing.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Petitioner Jesse Powell moves, pursuant to Rules of Court rules 2.550 and 2.551, for an order sealing portions of Petitioner’s 10/30/25 Opposition to Respondent’s 10/16/25 Petition to Disqualify and portions of the 10/30/25 Declarations of Jesse Powell and Alex Spiro in Support of Petitioner’s Opposition to Respondent’s 10/16/25 Petition to Disqualify (collectively, the “Subject Documents”).

Redacted copies of the three Subject Documents are in the Court file, and unredacted copies were *lodged* with the Court on October 30, 2025. (See Notice of Lodging of Documents

Conditionally Under Seal, filed 10/30/25.) Contrary to Petitioner’s 10/30/25 Motion, the unredacted copies were not “filed conditionally under seal” and are not, and were never, part of the Court file. (See Notice of Motion, 2:7.) By correspondence dated February 18, 2026, the Court notified the parties that it was returning the lodged, unredacted copies to counsel as the underlying motion to disqualify was withdrawn. Thus, the Court no longer has the unredacted copies in its possession.

Moreover, given that the underlying motion to which the Subject Documents were filed in opposition—i.e., Respondent’s 10/16/25 motion to disqualify—was withdrawn by Respondent’s counsel, there is no need for the Subject Documents in the court file (either redacted or unredacted). The motion to disqualify was withdrawn pursuant to the 2/2/26 Minute Order, which states that “[Respondent’s counsel] advised the Court that the Motions before the Court were being withdrawn at this time.” (2/2/26 Minute Order.) Respondent’s motions before the Court on 2/2/26 were the 10/16/25 motion to seal and 10/16/25 motion to disqualify. While Petitioner argues that his 10/30/25 motion to seal was improperly taken off calendar in response to the 2/2/26 Minute Order, Petitioner does not contend that the withdrawal of Respondent’s motions was inaccurate. (See Lewis Decl., ¶¶ 7-8.) Nor is there any other indication from Petitioner’s 6/3/26 *Ex Parte* Application or the Court file that the motion to disqualify is, or should be, on calendar. Rather, Petitioner merely argues that his motion to seal must be reset to avoid “a risk that the confidential attorney-client communications at issue in the Motion [] become part of the public record” (*Id.*, ¶ 14.)

Because unredacted copies of the Subject Documents are neither in the Court file nor in the Court’s possession via lodgment, and because there is no need for the unredacted copies to be in the Court file, the Motion to seal the unredacted version of those documents is moot. Thus, the Motion is DENIED.

To the extent either party contends that there is a need for the unredacted version of the Subject Documents to be in the Court file, the present Motion must be continued to allow Petitioner to lodge the unredacted version of the Subject Documents. Any party so contending should request oral argument pursuant to Local Rule 2.9 and appear at the hearing.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

In the Matter of The Trudy Muffet Living Trust

26PR000035

AMENDED PETITION TO DETERMINE AND CONFIRM SUCCESSOR TRUSTEE

TENTATIVE RULING: The petition is GRANTED.